

Tentative Rulings

August 10, 2026

8:30 a.m.

Department 42

ESTATE OF KIP LEE

CASE NUMBER: 26PB-0033450

Disclosure Re: guardianship cases involving Shasta County -Judge Wood discloses that her step-daughter, Erinn Watts, is the Administrative Branch Director of the Health and Human Services Agency. In that position, Judge Wood's step-daughter does not have any involvement in the investigation, management, prosecution or defense of probate or public administrator cases. However, the Court makes this disclosure of an employment relationship between the County of Shasta and the Court's first degree relative as required by California Code of Judicial Ethics.

This matter is on calendar for hearing on a Petition for Letters of Administration. Petitioner has submitted a declaration which includes a will of the decedent but questions the validity of the will because the decedent was conserved. Being conserved in and of itself does not deny a conservatee the right to make a will. Probate Code Section 1871. "An individual 18 or more years of age who is of sound mind may make a will." Probate Code Section 6100. "A determination that a person is of unsound mind or lacks the capacity to make a decision or do a certain act, including, but not limited to, the incapacity to contract, to make a conveyance, to marry, to make medical decisions, *to execute wills*, or to execute trusts, shall be supported by evidence of a deficit in at least one of the following mental functions, subject to subdivision (b), and evidence of a correlation between the deficit or deficits and the decision or acts in question." Probate Code Section 811. No evidence of a deficit in any mental functions has been provided to show that the decedent lacked testamentary capacity at the time the will was created.

A copy of the proof of proper publication has been filed; the original has not yet been filed. The Court notes the proof of publication does not state that the petition requests the decedent's will be admitted to probate. The matter is continued to **Monday, September 14, 2026, at 8:30 p.m. in Department 42** for further proceedings on the Petition. A new Notice of Petition to Administer Estate is required to be filed and served for the continued hearing date. If Petitioner intends to move forward without challenging the validity of the will, an amended Petition for Probate of Will is required to be filed and served and the original will must be lodged. If Petitioner intends to challenge the validity of the will, the proper procedures for a will contest must be followed. If the will is deemed invalid, notice to the State Attorney General is required because the estate will escheat. **No appearance is necessary on today's calendar.**